

ORIGINAL

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Christine M. Arguello**

Civil Action No. 17-cv-01341-CMA-STV

WALDO MACKEY,

Plaintiff,

v.

BRIDGETTE WATSON, and
SUSAN PRIETO,

Defendants.

VERDICT FORM

We, the jury, present our Answers to Questions submitted by the Court, to which we have unanimously agreed:

Question 1: Did Plaintiff Mr. Mackey prove, by a preponderance of the evidence, the four elements of his First Amendment retaliation claim against Defendant Sgt. Watson (Claim 1), as set forth in Instruction No. 10?

 X Yes No

If you answered "No" to Question 1, skip Questions 2, 3, and 4, and proceed to Question 5. If you answered "Yes" to Question 1, proceed to Question No. 2.

Question 2: Based on Instruction No. 13, is Plaintiff Mr. Mackey entitled to compensatory damages to compensate him for losses he suffered as a result of Defendant Sgt. Watson's actions?

 X Yes No

If you answered "No" to Question 2, skip Question 3 and proceed to Question 4; the Court will award Plaintiff Mr. Mackey nominal damages in the amount of one dollar on Claim 1. If you answered "Yes" to Question 2, proceed to Question 3.

Question 3: Based on Instruction No. 13, what is the total amount of compensatory damages incurred by Plaintiff Mr. Mackey as a result of Defendant Sgt. Watson's retaliation?

\$ 1.00

Proceed to Question 4.

Question 4: Based on Instruction No. 14, Is Plaintiff entitled to recover punitive damages from Defendant Sgt. Watson?

X Yes _____ No

If you answered "Yes" to Question 4, proceed to Question 5. If you answered "No" to Question 4, skip Question 5 and proceed to Question 6.

Question 5: Based on Instruction No. 14, what is the amount of punitive damages for Defendant Sgt. Watson's violation of Plaintiff Mr. Mackey's First Amendment rights?

\$ 60,000.00

Proceed to Question 6.

Question 6: Did Plaintiff Mr. Mackey prove, by a preponderance of the evidence, the two elements of his Fourteenth Amendment procedural due process claim against Defendant Lt. Prieto (Claim 2), as set forth in Instruction No. 11?

X Yes _____ No

If you answered "No" to Question 5, skip the remaining questions, and have the Foreperson sign and date the Verdict Form. If you answered "Yes" to Question 6, proceed to Question 7.

☒ Yes ☐ No

\$ 1.00

X Yes _____ No

\$ 120,000.00

9/18/19

1.14-1.14.1

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